

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
DONALD SALOMON,

Plaintiff,

-against-

THE CITY OF NEW YORK, individually and
officially in their capacities as New York City
police officers, MANLEY PRYCE, MICHAEL
CASTELLANO, ASAR RHYMER, and JOHN or JANE
DOE 1-10,Defendants.
-----X

Index No.

Plaintiffs designate
New York County as the place of trialThe basis of the venue is where the
injury occurredSUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 2, 2020
SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard - Suite 201

Bayside, New York 11361

T: (718) 281-0400

TO: ~ CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer MANLEY PRYCE of the PSA6 Precinct
Shield#:25494 Tax ID#: 933209
2770 Frederick Douglass Boulevard
New York, New York 10039

Police Officer MICHAEL CASTELLANO of the PSA6 Precinct
Shield#: 24327, Tax ID#: 940982
2770 Frederick Douglass Boulevard
New York, New York 10039

Police Officer ASAR RHYMER of the PSA6 Precinct
Shield#: 19679 Tax ID#: 959131
2770 Frederick Douglass Boulevard
New York, New York 10039

SUPREME COURT OF THE STATE OF NEW YORK
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CASTELLANO, ASAR RHYMER, and JOHN or JANE
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Defendants.

VERIFIED COMPLAINT

Plaintiff, DONALD SALOMON, by their attorneys, Sim & DePaola, LLP, for their complaint against the above Defendants, City of New York, individually and officially in their capacities as New York City police officers, MANLEY PRYCE, MICHAEL CASTELLANO, ASAR RHYMER and John and/or Jane Doe 1-10, alleges and states as follows:

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. §§ 1983 and 1988 for the violations of his civil rights protected by Constitution of the United States and the Constitution and laws of the State of New York.
2. Plaintiff's claims arise from a January 10, 2019 incident, in which Defendants, acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate result, Plaintiff Mr. Salomon was unlawfully detained within the New York City Police Department, within the jurisdictional confines of New York County, New York. Mr. Salomon was charged with Assault in the Second Degree. Plaintiff was deprived of his liberty for approximately nineteen (19) days and suffered serious physical and emotional injuries. He was maliciously prosecuted, until his dismissal, on January 29, 2019.

3. Plaintiff has served a notice of claim, which has been deemed timely served by this Court.

4. Thirty days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.

5. Plaintiff has complied with municipal Defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

6. This action and associated claims have been timely commenced within all applicable statutes of limitations.

7. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

8. Plaintiff, DONALD SALOMON, resides at 840 Columbus Avenue, Apartment 7D, New York, New York 10025

9. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

10. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

11. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

12. Defendant MANLEY PRYCE was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant PRYCE was, at the time relevant herein, a police officer under Shield # 25494 and Tax ID # 933209 in the NYPD, located at the PSA 6 Precinct, 2770 Frederick Douglass Boulevard, New York, New York 10039. Defendant PRYCE is being sued in his individual and official capacities.

13. Defendant MICHAEL CASTELLANO was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant CASTELLANO was, at the time relevant herein, a police officer under Shield # 24327 and Tax ID # 940982 in the NYPD, located at the PSA 6 Precinct, 2770 Frederick Douglass Boulevard, New York, New York 10039. Defendant CASTELLANO is being sued in his individual and official capacities.

14. Defendant ASAR RHYMER was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant RHYMER was, at the time relevant herein, a police officer under Shield # 19679 and Tax ID # 959131 in the NYPD, located at the PSA 6 Precinct, 2770 Frederick Douglass Boulevard, New York, New York 10039. Defendant RHYMER is being sued in his individual and official capacities.

15. At all times relevant Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, were detectives, supervisors, policy makers and/or officials employed by

the NYPD. At this time, Plaintiffs do not know the true names or tax registry numbers of Defendants John and/or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.

16. At all times relevant Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD.

17. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants John and/or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.

18. At all times relevant herein, Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, were acting as agents, servants and employees of the City of New York, and/or the NYPD. Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, are being sued in their individual and official capacities.

19. At all times here mentioned, Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

20. On January 10, 2019, at approximately 6:15 A.M., Plaintiff was in the vicinity of 840 Columbus Avenue between West 104th Street and West 100th Street, in the County of New York, State of New York.

21. On said date, time and location, DONALD SALOMON was walking with his friend to 860 Columbus Avenue to watch a movie at his friend's house.

22. Mr. Salomon and his friend entered the building where Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10, were inside the front lobby entrance with several kids who were caught smoking.

23. Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, questioned Mr. Salomon on if he was “trespassing” on the premises, to which Mr. Salomon replied that he was not, in fact, trespassing.

24. Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, and the high school students abruptly got into an altercation as Mr. Salomon and his friend entered the building, and shortly thereafter, Mr. Salomon was dragged into the altercation by Defendants.

25. Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, began to violently attack Mr. Salomon, using a Baton, which struck Mr. Salomon in his forehead.

26. Defendants used a taser on DONALD SALOMON, and then proceeded to taser Plaintiff a total of two (2) times, even after striking him with a baton.

27. As a result of the taser, Plaintiff’s right leg was injured.

28. Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, tackled DONALD SALOMON to the ground, and began to punch him in the face a total of three (3) times.

29. While attempting to handcuff DONALD SALOMON, Defendants unnecessarily pushed Plaintiff’s face back into the ground.

30. Plaintiff was rear handcuffed by Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10.

31. DONALD SALOMON repeatedly notified the Defendants that he was not trespassing and does not know the kids that the officers were previously dealing with, but Defendants refused to listen to Plaintiff as well as inform him of his actual reason for his detainment.

32. DONALD SALOMON did not Assault the Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10.

33. DONALD SALOMON was not resisting arrest, not obstructing any governmental administration, and had not committed any crime or violation of the law.

34. DONALD SALOMON had multiple assaults and batteries, committed to his person, by Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10, including but not limited to, head pains from being struck by a baton, right leg pains from the taser prongs attaching to the right leg area, tased with a taser gun a total of two (2) times, as well as being placed in handcuffs too tightly.

35. At all relevant times, Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10, intentionally provided said false or fabricated information that would be likely to influence a prosecutor employed by the District Attorney's Office to wrongfully prosecute the Plaintiff, namely that Plaintiff committed two assaults in the second degree, and that the Plaintiff was observed to be unlawfully arrested and detained, so that a criminal prosecution would be initiated against Plaintiff.

36. Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10, fabricated the fact that Plaintiff committed two assaults in the second degree, so that they could falsely implicate Plaintiff of various crimes that Defendants knew him to be innocent of.

37. At no time did Plaintiff commit any assault to any degree.

38. Defendants', including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, knowingly and intentionally made false statements and allegations against the Plaintiff and thus, Plaintiff was falsely arrested, unlawfully stunned, and charged with assault in the second degree that Defendants knew to be false since Plaintiffs did not commit any assault.

39. Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10 arrested and initiated a criminal prosecution against Plaintiff, not because Defendants believed Plaintiff to be guilty of any crime or violation of the law, but because of their desire to compel Plaintiff, who was unlawfully attacked and beaten without any prior warning, tasing DONALD SALOMON, and unlawfully arresting and detaining Mr. Salomon even though he committed no crimes or violations of law.

40. At all times relevant hereto, Defendants, including PRYCE, CASTELLANO, RHYMER and John or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's wrongful arrest and subsequent malicious criminal prosecution.

41. Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10, further ensured that Plaintiff would be falsely inculpated amidst the unlawful beating and arrest.

42. DONALD SALOMON was transported by ambulance to St. Luke's Hospital for treatment of the unlawful tasing wounds to his right leg, then was in the hospital, handcuffed to his hospital bed for approximately three (3) days.

43. Plaintiff was accompanied by seven (7) Police officers of the Defendant CITY OF NEW YORK during his stay at St. Luke's Hospital.

44. Plaintiff was transferred from St. Luke's Hospital to Bellevue Hospital, and stayed there for approximately five (5) days. Plaintiff was also handcuffed to his hospital bed during his stay.

45. DONALD SALOMON was then released from Bellevue by Police escort and was taken to Central Bookings and stayed for approximately two (2) weeks.

46. Upon arrival at Central Bookings, Plaintiff was photographed and fingerprinted by, or at the direction of Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10

47. On or about January 16, 2019, DONALD SALOMON's bail amount was set for the amount of \$2,500 by the Honorable Judge Alonso Martinez, and the amount was paid in full on or about January 24, 2019.

48. At no point did the Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, ever observe Plaintiff committing any of the alleged crimes as well as Assault in the Second Degree.

49. At no point were the Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, ever told by any witnesses that the Plaintiff committed any crime or violation of the law.

50. Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10 did not possess probable cause or other justification for the arrest or seizure of Plaintiff's person.

51. Defendants, including PRYCE, CASTELLANO, RHYMER, and John or Jane Doe 1-10, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime, as Defendants PRYCE, CASTELLANO, RHYMER and John or Jane Doe 1-10 were fully aware that any evidence against Plaintiff was either fraudulent or fabricated, including the observations provided by Defendant PRYCE, CASTELLANO,

RHYMER, in which Plaintiff was falsely accused of resisting arrest, possession of controlled substances at said location.

52. While Plaintiff was unlawfully detained, Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, acted with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for assault in the second degree.

53. Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely the unlawful beating, unlawful tasering, and unlawful arrest of DONALD SALOMON without probable cause.

54. Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, suppressed evidence and engaged in conduct undertaken in bad faith, including the fabrication of false evidence and the gratuitous use of excessive force against the Plaintiff.

55. At all times relevant hereto, Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause or using excessive force to effectuate his arrest.

56. At all times relevant hereto, Defendants, including PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants PRYCE, CASTELLANO, RHYMER, and John and/or Jane Doe 1-10 observed others doing so, all in furtherance of Plaintiff's wrongful arrest and subsequent malicious attempt at a criminal prosecution.

57. Plaintiff assert that the Defendants, including PRYCE, CASTELLANO, RHYMER and John and/or Jane Doe 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

58. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

59. In a report by *NBC Channel 4 News, New York*, entitled "Ex NYPD Sergeant Accused of Assaulting Man at Homeless Shelter, Stomping on His Head More Than 10 Times," by Jonathan Dienst and Joe Valiquette, horrific allegations against a former NYPD police sergeant were detailed, including his use of extreme and excessive force, as well as his falsifying evidence that was forwarded to prosecutors. The former NYPD sergeant is no longer by NYPD and his criminal case is presently being prosecuted by the United States Attorney's Office for the Southern District of New York. Another article from *citylimits.org*, entitled "CityViews: Is NYPD Oversight Really making Homeless Shelters Safer," by Daniel Castillo, discusses how the NYPD police officers have begun to jointly enforce the law within many homeless shelters, but how such added policing

has only worsened the already crime riddled areas. It also details how ongoing problems have only deteriorated since the newly enacted joint jurisdiction.

60. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

61. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

62. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

63. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

64. Other articles include: (i) “Testifying’ by Police: A Stubborn Problem,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*,

November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

65. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

66. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiffs’ arrest without probable cause.

67. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

68. Defendants’ actions, pursuant to Plaintiff’s underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of

constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, and City of New York.

69. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD, and City of New York.

70. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

71. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Blair, John or Jane Doe 1-10.

72. As a direct and proximate result of the acts of Defendants, including the City, whose including PRYCE, CASTELLANO, RHYMER, John and/or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

73. Plaintiff re-alleges and re-avers Paragraph 1 through 72 of this Complaint as if fully set forth herein.

74. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

75. Plaintiff was conscious of their confinement.

76. Plaintiff did not consent to their confinement.

77. Plaintiff's arrest and false imprisonment were not otherwise privileged.

78. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

80. Plaintiff re-alleges and re-avers Paragraphs 1 through 79 of this Complaint as if fully set forth herein.

81. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

82. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff were carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

83. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

84. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Assault and Battery Under New York State Law

85. Plaintiffs re-alleges and re-avers Paragraph 1 through 84 of this Complaint as if fully set forth herein.

86. Defendants made Plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.

87. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent such as striking Mr. Salomon with a baton, tasing him two (2) times, and knocking him to the ground.

88. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

90. Plaintiff re-alleges and re-avers Paragraphs 1 through 89 of this Complaint as if fully set forth herein.

91. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

92. Defendants engaged in and subjected the Plaintiff to immediate harmful and/or offensive touching and battered him without his consent such as striking Mr. Salomon with a baton, tasing him two (2) times, and knocking him to the ground, which required medical treatments.

93. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

94. Plaintiff re-alleges and re-avers Paragraph 1 through 93 of this Complaint as if fully set forth herein.

95. Defendants initiated the prosecution against Plaintiff.

96. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

97. Defendants acted with malice.

98. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION
Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

101. Plaintiff re-alleges and re-avers Paragraphs 1 through 100, of this Complaint as if fully set forth herein.

102. Defendants initiated the prosecution against Plaintiff.

103. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

104. Defendants acted with malice.

105. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

106. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.

107. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION
Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

108. Plaintiff re-alleges and re-avers Paragraphs 1 through 107 of this Complaint as if fully set forth herein.

109. Defendants fabricated false evidence to be used against Plaintiff that were likely to influence a jury's decision and forwarded said false information to the District Attorney's Office.

110. Defendants' actions deprived Plaintiff of their right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement, including his post-arraignment detainment.

111. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

112. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

113. Plaintiff re-alleges and re-avers Paragraphs 1 through 125 of this Complaint as if fully set forth herein.

114. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

117. Plaintiff re-alleges and re-avers Paragraphs 1 through 129 of this Complaint as if fully set forth herein.

118. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

119. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

121. Plaintiff re-alleges and re-avers Paragraph 1 through 133 of this Complaint as if fully set forth herein.

122. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

123. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

124. Defendants intended to inflict substantial harm upon Plaintiff.

125. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

126. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION
Malicious Abuse of Process Under

42 U.S.C. § 1983 Against Individual Defendants

128. Plaintiff re-alleges and re-avers Paragraph 1 through 127 of this Complaint as if fully set forth herein.

129. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

130. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

131. Defendants intended to inflict substantial harm upon Plaintiff.

132. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

133. Defendant's actions deprived Plaintiff of his constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.

134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

135. Plaintiffs re-allege and re-avers Paragraph 1 through 147 of this Complaint as if fully set forth herein.

136. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

137. Defendant City breached those duties of care.

138. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

139. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

140. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

142. Plaintiff re-alleges and re-avers Paragraph 1 through 154 of this Complaint as if fully set forth herein.

143. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

144. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

145. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

146. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and

equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

147. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

148. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States, pursuant to the Fourth, Sixth and Fourteenth Amendments.

149. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

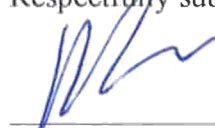
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - n) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - o) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: January 2, 2020

Respectfully submitted,



SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Blvd - Ste 201

Bayside, New York 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Peter Sim, an attorney admitted to practice in the courts of New York State, state that I am an partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 2, 2020



PETER SIM, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

DONALD SALOMON,

Plaintiff,

-against-

THE CITY OF NEW YORK, individually and
officially in their capacities as New York City
police officers, MANLEY PRYCE, MICHAEL
CASTELLANO, ASAR RHYMER, and JOHN or JANE
DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: Peter Sim, Esq.

Attorney for Plaintiff

42-40 Bell Boulevard

Bayside, NY 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for